

an appeal unless an undertaking is given.” (*Sarkany v. West* (2022) 82 Cal.App.5th 801, 807.) This is known as the money judgment exception to the automatic stay rule.

Plaintiff has appealed the Court's order regarding discovery sanctions. This is an order for the payment of money. Plaintiff provides no evidence that an undertaking has been made. As such, **the request for stay is denied.**

The Court notices that there are four other Defendants, **TERRY SCHWICHTENSE, ORTEGA FELIPE, TERRY S. SCHWICHTENBERG, and FELIPE M. ORTEGA.** No proof of service has been filed as to any of the named Defendants as to the Second Amended Complaint filed on 12/5/2024. The Court sets the Matter for a Case Management Conference on **10/8/2026** at 8:30 a.m. in Department 6.

The Matter is also set for an OSC as to why sanctions of up to \$1,500 or a dismissal should not be imposed for the Plaintiff's failure to timely file proof of service on all defendants (CRC 3.110.(b)&(f)) set for **10/8/2026 at 8:30 a.m. in Department 6.**

3.

CASE #	CASE NAME	HEARING NAME
CVRI2400469	MENACHEM LAND, LLC vs LINKAGE FINANCIAL GROUP, INC.	MOTION FOR LEAVE TO INTERVENE

Tentative Ruling:

This motion is unopposed. Motion to intervene is granted. Moving party to give notice of ruling. Moving party to file and serve an Answer/responsive pleading within 30 days of this order.

4.

CASE #	CASE NAME	HEARING NAME
CVRI2401587	AVILA vs RAMIREZ II	DEMURRER ON 1ST AMENDED COMPLAINT

Tentative Ruling:

The Demurrer is unopposed. Demurrer is sustained without leave to amend. Moving party to give notice of ruling. Proposed order submitted has been signed by the Court.

The CMC is continued to 9/14/2026.